

HOUSE No. 818

The Commonwealth of Massachusetts

PRESENTED BY:

Marjorie C. Decker

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act requiring major policy makers to disclose donations to entities engaging in political activity.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>1/14/2025</i>
<i>Estela A. Reyes</i>	<i>4th Essex</i>	<i>5/28/2025</i>

HOUSE No. 818

By Representative Decker of Cambridge, a petition (accompanied by bill, House, No. 818) of Marjorie C. Decker relative to the disclosure of donations by major policy makers engaging in political activity. Election Laws.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act requiring major policy makers to disclose donations to entities engaging in political activity.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 55 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by adding the following section after Section 42:-

3 Section 43. (a) Every person in a major policymaking position, as that term is defined in
4 section 1 of chapter 268B, notwithstanding whether or not that person receives compensation,
5 shall disclose to the office of campaign and political finance any transfer of money or other thing
6 of value to individuals or organizations that are formed and operate as tax exempt organizations
7 under the Internal Revenue Code § 501(c)(3), 501(c)(4), 501(c)(5) and 501(c)(6), as well as by
8 any other entity, including an entity created under § 527 of the Internal Revenue Code, or any
9 limited liability corporation, that is not organized as a political committee if that entity engages
10 in conduct as described in subsection (b).

(b) The donor shall disclose any transfer of money or other thing of value to any entity described in subsection (a):

(i) if that entity makes contributions to support or oppose candidates, or to make independent expenditures;

(ii) if that entity makes contributions to support or oppose a ballot question;

(iii) if that entity makes electioneering communications;

(iv) and to any entity that itself makes a transfer of money or other thing of value in excess of \$1,000 to another entity that then makes a transfer or other thing value to support or oppose candidates, make independent expenditures, support or oppose a ballot question, or make an electioneering communication.

This subsection shall apply to any transfer of money or other things of value in excess of a value of \$1,000.

(c) A political committee shall report to the office of campaign and political finance the identity of any person in a major policymaking position who has made a transfer of money or other thing of value in excess of \$1,000 to any entity as defined in subsection (a).